AGREEMENT TO SELL

(On Non-Judicial Stamp Paper of Rs. 100/-)

This Agreement is executed at Kochi on 9th day of September, 2024 BY AND BETWEEN:

Shri Manbir Bajaj, aged about 57 years, S/o Gagan Bajaj, residing at House No. 982, Road No. 9, Kazipet, Warangal - 506071, hereinafter referred to as the "SELLER" (which expression shall, unless repugnant to the context or meaning thereof, mean and include his heirs, executors, administrators and assigns) of the ONE PART;

AND

Mr. Ayushman Sandal, aged about 62 years, S/o Neel Sandal, residing at House No. 791, Cross No. 12, Anna Nagar, Madurai - 625079, hereinafter referred to as the "BUYER" (which expression shall, unless repugnant to the context or meaning thereof, mean and include his heirs, executors, administrators and assigns) of the OTHER PART.

WHEREAS the Seller is the absolute owner of the agricultural land described in the Schedule hereunder written ("the said Property"), having acquired the same by a Gift Deed registered as Document No. 6816 of 2013;

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. SUBJECT PREMISES
The said Property is the agricultural land being Survey No. 340/3, admeasuring 2.54 acres, situated at Village Keshgaon, Taluka Ganganagar, District Kottayam, Kerala.

2. TITLE OF THE SELLER
The Seller shall produce the originals of all title deeds for inspection by the Buyer or the Buyer's advocate within fifteen days from today.

3. PRICE
The total sale consideration for the said Property is agreed at ₹23,70,000/- (Rupees Twenty Three Lakh Seventy Thousand only).

4. ADVANCE PAYMENT
On signing this Agreement, the Buyer shall pay ₹4,70,000/- by RTGS to the Seller as earnest money.

5. BALANCE PAYMENT
On or before 16th day of April, 2025, the Buyer shall pay the remaining ₹19,00,000/- to the Seller against execution of the sale deed.

6. HANDING OVER OF POSSESSION
Vacant possession of the said Property shall be delivered by the Seller to the Buyer not later than 4th day of May, 2025, simultaneously with the payment of the balance consideration.

7. TRANSFER OF TITLE

The Seller shall execute and present the sale deed for registration in favour of the Buyer upon receipt of the full consideration.

8. MORTGAGE AND LIENS
The said Property is subject to an equitable mortgage created in favour of State Bank of India to secure a home loan with an outstanding amount of ₹11,80,000/- (Rupees Eleven Lakh Eighty Thousand only). The Seller shall clear the said loan and obtain a no-dues certificate from the bank before execution of the sale deed.

9. OUTGOINGS AND DUES
The Seller shall pay all property taxes, society charges and other outgoings in respect of the said Property up to the date of handing over possession.

10. DEFAULT
Should the Seller commit default, the Seller shall return the advance received together with an equal amount by way of liquidated damages. If the Buyer defaults in payment of the balance, the Seller may terminate this Agreement after giving fifteen days' written notice.

11. CANCELLATION OF AGREEMENT
This Agreement may be cancelled by mutual consent in writing, in which case the advance shall be refunded within thirty days.

12. ARBITRATION
Any dispute arising out of this Agreement shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

13. GOVERNING LAW AND JURISDICTION
This Agreement shall be governed by the laws of India, and the courts at Kochi alone shall have jurisdiction.

SCHEDULE OF THE PROPERTY
All that agricultural land being Survey No. 340/3, admeasuring 2.54 acres, situated at Kochi, and bounded as follows:
On or towards the North: property of Gaurang Char
On or towards the South: nala
On or towards the East: Survey No. 767/1A
On or towards the West: main road
Consideration for the above property: ₹33,70,000/-

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on the day, month and year first above written.

SELLER
(Manbir Bajaj)

BUYER
(Ayushman Sandal)

WITNESSES:

1. Praneel Khosla, Kolkata
2. Jagdish Naidu, Kochi